

		Thus, the general demurrer to the third cause of action is SUSTAINED with 20 days leave to amend.
3	Martinez medina vs. Santa Ana Unified School District 2023-01320099	Demurrer to Cross- Complaint Cross-Defendant Santa Ana Unified School District's unopposed demurrer to the Cross-Complaint filed by Cross-Complainants Kevin Harris, in <i>pro per</i>, and M. Harris, a minor, in <i>pro per</i> is SUSTAINED with 20-days leave to amend. Cross-Defendant challenges the Cross-Complaint in its entirety on the grounds it fails to plead compliance or excuse for such compliance with the Government Tort Claims Act. Pursuant to Government Code section 945.4, "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented...until a written claim therefor has been presented to the public entity and has been acted upon. . . or has been deemed to have been rejected. . ." (Gov. Code §945.4). The requirement "is not merely procedural, but is a condition precedent to maintaining a cause of action and, thus, is an element of the plaintiff's cause of action. [Citation.] As a result, the 'failure to allege facts demonstrating or excusing compliance with the claim presentation requirements subjects a claim against a public entity to a demurrer for failure to state a cause of action.' [Citation.]" (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal.App.4th 1228, 1236; see also <i>State of California v. Superior Court (Bodde)</i> (2004) 32 Cal.4th 1234, 1243.) Here, the Cross-Complaint fails to allege compliance or excuse from compliance with the claim presentation requirement. Cross-Complainants seek monetary damages as to each cause of action and, consequently, a claim was required as to each. (Gov. Code, §945.4.) Based on the foregoing, the demurrer is SUSTAINED with 20-days leave to amend. Moving party to give notice.

4	Ko vs. Newrez, LLC 2024-01400538	1. Demurrer to Amended Complaint Defendants William R. Jarrell and Aldridge Pite, LLP's Demurrer to the First Amended Complaint is OVERRULED as moot. Defendants were dismissed on 4/2/25. (ROA 104, 106.) Thus, the Demurrer must be overruled as moot. (See <i>JKC3H8 v. Colton</i> (2013) 221 CA4th 468, 477.)
5	Rodriguez vs. Career Networks Institute 2023-01322769	1. Demurrer to Amended Complaint The unopposed general demurrer of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to the second amended complaint of plaintiff Gabriela Rodriguez is sustained in its entirety without leave to amend. Defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales demur generally and specially on the ground of uncertainty to all three causes of action in the second amended complaint of plaintiff Gabriela Rodriguez (ROA 73), which are based on her dismissal from the nursing program of defendant Career Networks Institute, Inc. Plaintiff alleges that defendant Anne Gonzales was an employee of the co-defendant. (See SAC, ¶ 3.) <u>First cause of action for negligence against defendant Gonzales.</u> The first cause of action is for negligence, which is asserted only against defendant Gonzales. Actionable negligence is traditionally regarded as involving the following: (1) a legal duty to use due care; (2) a breach of that duty; and (3) the breach as the proximate or legal cause of the resulting injury. 6 Witkin, Summary of Cal. Law (11 ed. 2024), Torts § 961. The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. <u>Greenberg v. Superior Court</u> (2009) 172 Cal.App.4th 1339, 1349. Courts have invoked the concept of duty to limit generally the otherwise potentially infinite liability that would follow from every negligent act. <u>Ibid.</u> Unlike the elements of breach, causation, and injury, all of which are fact-specific issues for the trier of fact, the existence and scope of a duty are questions of law. <u>Staats v. Vintner's Golf Club, LLC</u> (2018) 25 Cal.App.5th 826, 833.